

Declaration states that prospective “patients who had consultations have told us that they decided not to book surgeries after seeing Phu Vo’s negative comments.” (Diep Decl., ¶ 70; see also *id.* at ¶ 71 [“A number of prospective hair transplant patients have stated on the hair transplant forums that, as a result of Mr. Vo’s disparagement of me and my clinic, they decided not to have hair transplant procedures done at my clinic.”].)

The court GRANTS Vo’s special motion to strike the FAC’s sixth cause of action.

II. Attorney’s Fees

The “prevailing defendant” on a motion to strike “shall be entitled” to recover their attorney fees and costs. (Code Civ. Proc., § 425.16, subd. (c).) Any “SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) A defendant’s lack of success on some claims or causes of action is relevant to the amount of, but not the right to, fees. (*Jackson v. Yarbray* (2009) 179 Cal.App.4th 75, 92.) Because Vo’s motion was granted in part, Vo may be entitled to recover fees and costs associated with bringing the motion, but because the motion is not accompanied by any declaration regarding fees and costs, the court will reserve on the issue until such time as it is adequately presented to the court (if the parties elect to do so).

III. Conclusion

The court GRANTS Vo’s special motion to strike the FAC’s second, third, fourth, fifth, and sixth causes of action. The court DENIES Vo’s special motion to strike the FAC’s first cause of action.

SO ORDERED.

Date: June 26, 2026

Hon. Lori E. Pegg
Superior Court of the State of California,
County of Santa Clara

Line 4

Case Name: *Terry Kwong, et al. v. Elaine Yang, et al.*

Case No.: 24CV445397

See ORDER above. (Terry Kwong’s Motion to Compel Further Amended and Verified Responses to Form Interrogatories, Requests for Admissions, Requests for Production of

Special Interrogatories from Defendant/Cross-Complainant Elain Yang has been continued by stipulation and court order to July 31, 2026 at 9:00 a.m. in Department 16.)

Date: June 26, 2026

Hon. Lori E. Pegg
Superior Court of the State of California,
County of Santa Clara

Line 5

Case Name: *Argent Investments LLC v. Ye Rang Choi, et al.*

Case No.: 25CV468257

See ORDER above. (Cross-Defendants' Motion to Strike is STAYED pending completion of appeal).

Date: June 26, 2026

Hon. Lori E. Pegg
Superior Court of the State of California,
County of Santa Clara